

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION TO ESTABLISH UNIFORM PROCEDURES, FEES, COSTS AND CHARGES FOR INSPECTING, COPYING AND PRODUCING PUBLIC RECORDS."

WHEREAS, the City of Cheyenne acknowledges its citizens' rights to access public records, and to obtain such records pursuant to Wyoming law; and

WHEREAS, the Wyoming Public Records Act, Wyoming Statutes §§ 16-4-201 through 16-4-205, provides authority and sets forth procedures for the City to follow with regard to responding to requests for public records; and

WHEREAS, Wyoming Statute § 16-4-204(c) requires any fees or charges assessed by a custodian of public records to "first be authorized by duly enacted or adopted statute, rule, resolution, ordinance, executive order or other like authority";

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the following fee schedule be established for all requests for public records; and

BE IT FURTHER RESOLVED, that nothing in this resolution shall be construed as authorizing a fee to be charged as a condition of making a public record available for public inspection.

1. Copy charges and related fees.

<u>Service</u>	<u>Fee</u>
Black and white copies	\$1.00 1 st pg. + \$0.25 each additional
Color copies	\$1.00/pg. or cost to contract out
Photograph	Actual cost
Fax transmission	\$1.00/pg.
Police reports	Per department policy
Use of outside vendor for copying	Actual cost
Special instances, <i>i.e.</i> , film	Actual cost
Electronic media (disk, thumb drive, etc.)	Actual cost
Postage/shipping	Actual cost
Research or compilation services	Actual staff time cost

2. Electronic/Digital Public Records.

Wyoming Statute § 16-4-202(d)(i) allows a fee to be charged for the reasonable cost of producing and constructing a copy of an electronic public record for inspection and copying. The City may charge an applicant the actual cost of any programming and computer services for such service plus any copy or electronic media fees listed above.

3. The City of Cheyenne is authorized to use discretion in assessing the necessity and amount of fees when charging for requests. Additional charges may be assessed on an as-needed basis at the discretion of the Mayor or appropriate Department Director.

4. The Mayor or appropriate Department Director may exercise discretion in determining fees that are not listed on this schedule.

5. This fee schedule is not applicable to governmental entities and is not intended for interdepartmental use.

PRESENTED, READ AND ADOPTED on this _____ day of _____, 2018.

Marian J. Orr, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk